

IN THE CIRCUIT COURT OF THE TWENTIETH JUDICIAL CIRCUIT
IN AND FOR CHARLOTTE COUNTY, FLORIDA

NANCY L. HYDE,
KEVIN B. HYDE,
Plaintiffs,

CASE NO.: 23000729CA

vs.

ALEXIA RASPATELLO,
PROGRESSIVE AMERICAN
INSURANCE COMPANY

Defendants.

_____ /

COMPLAINT FOR DAMAGES

Plaintiffs, NANCY L. HYDE & KEVIN B. HYDE, hereby sues Defendants, ALEXIA RASPATELLO & PROGRESSIVE AMERICAN INSURANCE COMPANY, and alleges the following:

1. This action is for damages in excess of \$50,000.00, exclusive of attorney's fees, interest and costs, and Plaintiff hereby demands bench trial.
2. Venue for this action is appropriate in Charlotte County, Florida, because that is the location where the underlying incident occurred.
3. At all times material and relevant, Plaintiff is and was a resident of Florida.
4. At all times material and relevant, one or more of the Defendants in this action resided in Florida and/or had its primary place of business in Florida.
5. All conditions precedent to bringing this action have occurred or have been waived.
6. On or around October 30, 2021, Defendant ALEXIA RASPATELLO operated a motor vehicle such that it wrongfully collided with a vehicle being occupied by the Plaintiff.
7. At or around the same time and place, that Defendant owed a duty to other drivers,

including the Plaintiff, to use reasonable and ordinary care in the operation and maintenance of the vehicle being driven.

8. At or around the same time and place, the Defendant breached that duty of care to the Plaintiff.
9. Defendant knew, or reasonably should have known, that failure to use ordinary care in the operation of said vehicle could cause the type of accident which caused injury to the Plaintiff.
10. As a direct, proximate and foreseeable result of the negligence of Defendant, Plaintiff suffered bodily injury and resulting pain and suffering, disability, disfigurement, mental anguish, loss of capacity for enjoyment of life, expense of hospitalization, medical and nursing care and treatment, loss of earnings, loss of ability to earn money, and aggravation of a previously existing condition. These losses are permanent within a reasonable degree of medical certainty and will continue into the future.
11. At all times material and relevant, Defendant ALEXIA RASPATELLO was the owner of the at-fault motor vehicle which was negligently driven. Accordingly, they are vicariously liable for that negligence under the doctrine of *dangerous instrumentality*.
12. At all times material and relevant, Defendants were underinsured for the damages caused to the Plaintiff. Plaintiff maintained underinsured motorist coverage through Defendant PROGRESSIVE AMERICAN INSURANCE COMPANY under policy number 950479911. Underinsured motorist benefits are currently due and owing under this policy.

WHEREFORE, Plaintiff, KEVIN B. HYDE & NANCY L. HYDE, demands judgment for damages against Defendants ALEXIA RASPATELLO & PROGRESSIVE AMERICAN INSURANCE COMPANY, for all just and proper relief to which they may be entitled under Florida law and demands a bench trial.

GOLDMAN, BABBONI,
FERNANDEZ, MURPHY & WOLSKI
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STEPHEN M. FERNANDEZ, ESQ.
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Progressive Insurance Company
 14505 SW 27th Way
 Miramar, FL 33027
 786-532-1969
 833-905-1751
 FLAttorneymail@progressive.com

Underwritten By: PROGRESSIVE AMERICAN INSURANCE CO
 Policyholder: HYDE, KEVIN
 Policy Number: 950479911-0
 Claim Number: 213935163
 Date of Loss: 10/30/2021
 Injured Party: HYDE, NANCY, HYDE, KEVIN
 Today's Date: March 1, 2022

GOLDMAN BABBONI FERNANDEZ MURPHY & WALSH
 NATASHA LOPEZ
 3550 S TAMiami TR 3RD FL STE 301
 SARASOTA, FL 34239

The purpose of this letter is to advise that we are in receipt of your letter of representation. As required by Florida Statute 627.4137 (formerly 627.7264) the following is our Statement Under Oath:

- A. Name of the insurer: PROGRESSIVE AMERICAN INSURANCE CO
 B. Name of each insured: KEVIN HYDE, NANCY HYDE
 C. The limits of liability coverage: RBI \$250,000 EACH PERSON-\$500,000 EACH ACCIDENT
 UM/UIM \$250,000 EACH PERSON-\$500,000 EACH ACCIDENT STACKED
 PD \$100,000 EACH ACCIDENT NO DEDUCTIBLE
 COMP ACV LESS \$500 DEDUCTIBLE
 COLL ACV LESS \$500 DEDUCTIBLE
 RENTAL \$40 PER DAY \$1200 MAXIMUM
 CLAIMS NO ROADSIDE ASSISTANCE NO CLAIMS - SEE PROCEDURES
 MEDPAY \$10,000 PER PERSON
 PIP \$10,000 LIMIT NO DEDUCTIBLE NAMED INSURED AND DEPENDENT RELATIVES
 D. A statement of any policy or coverage defense which such insurer reasonably believes is available to such insurer at the time of filing such statement: **There are no coverage issues at this time, however, Progressive reserves the right to amend this Policy Disclosure pending our further investigation.**
 E. A complete copy of the policy is enclosed.

If you feel Progressive has failed to fully comply with all of the requirements as set forth under 627.4137, please do not hesitate to contact the assigned adjuster at 561-469-5073.

I, Mark O'Brien, hereby swear or affirm and certify, under oath and penalty of perjury, that the contents of this disclosure made pursuant to Florida Statute 627.4137 are true and correct.

PROGRESSIVE AMERICAN INSURANCE CO

By its:

Claims Manager
 - Claims Superintendent

Sincerely,
 LOPEZ, ALEXANDER
 561-469-5073
 Claims Specialist

Enclosure(s): 9611A FL (07/17), A261 FL
 (05/19) AND DEC PAGE
 A10/dt

STATE OF <u>FL</u>
COUNTY OF <u>ORANGE</u>
SWORN TO (OR AFFIRMED) AND SUBSCRIBED before me by means of ☒ physical presence or ☐ online notarization this <u>2</u> day of <u>March</u> , 20 <u>22</u> by <u>Mark O'Brien</u> , personally known to me or who produced _____ as identification.
Signature of NOTARY PUBLIC, State of <u>FL</u>
Name of Notary Typed, Printed, or Stamped
My Commission Expires: ____/____/____

STACEY A. WALLER
 Commission # HH 142680
 Expires June 15, 2025
 Bonded by the State of Florida 800-385-7019

Exhibit

KEVIN HYDE
NANCY HYDE
PO BOX 44
BOCA GRANDE, FL 33921

Policy Number: 950479911

Underwritten by:
Progressive American Insurance Co
August 17, 2021
Policy Period: Jul 16, 2021 - Jan 16, 2022
Page 1 of 4

1-813-877-7799

ITALIANO INS SRV INC
Contact your agent for personalized service.

progressiveagent.com

Online Service
Make payments, check billing activity, update
policy information or check status of a claim.

1-800-274-4499

To report a claim.

Auto Insurance Coverage Summary

This is your Declarations Page

Your coverage has changed

Your coverage began on July 16, 2021 at the later of 12:01 a.m. or the effective time shown on your application. This policy period ends on January 16, 2022 at 12:01 a.m.

This coverage summary replaces your prior one. Your insurance policy and any policy endorsements contain a full explanation of your coverage. The policy limits shown for a vehicle may not be combined with the limits for the same coverage on another vehicle, unless the policy contract or endorsements indicate otherwise. The policy contract is form 9611A FL (07/17). The contract is modified by form A261 FL (05/19).

Policy changes effective August 17, 2021

Changes requested on:	Aug 17, 2021 10:32 a.m.
Requested by:	Nancy Hyde
Premium change:	\$402.27
Changes:	The 2018 FORD F150 has been added.

The changes take effect as of the date and time requested shown above.

Drivers and resident relatives

	Additional information
Kevin Hyde	Named insured
Nancy Hyde	Named insured

Outline of coverage**2018 TOYOTA HIGHLANDER 4 DOOR WAGON**VIN: **5TDJZRFH4JS883935**

Garaging ZIP Code: 33947

Primary use of the vehicle: Commute

Length of vehicle ownership when policy started or vehicle added: At least 3 years but less than 5 years

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$250,000 each person/\$500,000 each accident		\$138
Property Damage Liability	\$100,000 each accident		61
Personal Injury Protection/Deductible applies to	\$10,000	\$0	59
Named Insured/Spouse/Dependent Resident Relatives			
Uninsured Motorist - Stacked	\$250,000 each person/\$500,000 each accident		159
Medical Payments	\$10,000 each person		17
Comprehensive	Actual Cash Value	\$500	27
Collision	Actual Cash Value	\$500	73
Rental Reimbursement	up to \$40 each day/maximum 30 days		6
Roadside Assistance			5
Total premium for 2018 TOYOTA			\$545

2007 MERCEDES-BENZ C230 4 DOOR SEDANVIN: **WDBRF52H37F913699**

Garaging ZIP Code: 33947

Primary use of the vehicle: Pleasure/Personal

Length of vehicle ownership when policy started or vehicle added: 5 years or more

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$250,000 each person/\$500,000 each accident		\$96
Property Damage Liability	\$100,000 each accident		34
Personal Injury Protection/Deductible applies to	\$10,000	\$0	50
Named Insured/Spouse/Dependent Resident Relatives			
Uninsured Motorist - Stacked	\$250,000 each person/\$500,000 each accident		123
Medical Payments	\$10,000 each person		14
Comprehensive	Actual Cash Value	\$500	17
Collision	Actual Cash Value	\$500	38
Rental Reimbursement	up to \$40 each day/maximum 30 days		5
Roadside Assistance			5
Total premium for 2007 MERCEDES-BENZ			\$382

2018 FORD F150 CREW PICKUP

VIN: 1FTEW1E55JFC68782

Garaging ZIP Code: 33947

Primary use of the vehicle: Pleasure/Personal

Length of vehicle ownership when policy started or vehicle added: Less than 1 month

	Limits	Deductible	Premium
Liability To Others			
Bodily Injury Liability	\$250,000 each person/\$500,000 each accident		\$190
Property Damage Liability	\$100,000 each accident		71
Personal Injury Protection/Deductible applies to	\$10,000	\$0	52
Named Insured/Spouse/Dependent Resident Relatives			
Uninsured Motorist - Stacked	\$250,000 each person/\$500,000 each accident		142
Medical Payments	\$10,000 each person		15
Comprehensive	Actual Cash Value	\$500	29
Collision	Actual Cash Value	\$500	94
Rental Reimbursement	up to \$40 each day/maximum 30 days		7
Roadside Assistance			5
Total premium for 2018 FORD			\$605
Total 6 month policy premium			\$1,532.00

Premium discounts

Policy	
950479911	Multi-Policy, Home Owner, Multi-Car, Continuous Insurance: Platinum, Paperless, Paid in Full and Three-Year Safe Driving
Vehicle	
2018 TOYOTA HIGHLANDER	Anti-Lock Brakes, Driver and Passenger-side Airbag, Passive Anti-Theft Device and Smart Technology Discount
2007 MERCEDES-BENZ C230	Anti-Lock Brakes, Driver and Passenger-side Airbag and Passive Anti-Theft Device
2018 FORD F150	Anti-Lock Brakes, Driver and Passenger-side Airbag and Smart Technology Discount

Smart Technology DiscountSM is a service mark of Progressive Casualty Ins. Co.**Lienholder information**

Vehicle	Lienholder
2018 FORD F150 1FTEW1E55JFC68782	FIFTH THIRD BANK OLON, OH 44139

Policyholder inquiries

You may call your agent at 1-813-877-7799 to present inquiries or obtain information about coverage, and to obtain assistance with any complaints.

Agent signature


Company officers

A handwritten signature in black ink, appearing to read "Peter J. Delmonico".

Secretary